

“Cornerstone Residential Management,” apparently at another property location in Pittsburg, California. Supporting Declaration, ¶5 and **Exhibit B**.

An Opposition paper was filed on behalf of Plaintiff.* See Opposition filed on October 3, 2025 (“Plaintiff’s Opposition”). Although Plaintiff’s Opposition makes lengthy arguments, importantly, it fails to identify any filed proof of service of process on Reliant. While Plaintiff asserts confusion over the correct entity to sue, that is not the issue. Whatever entity or entities Plaintiff chooses to sue, Plaintiff must effect service of process on a person or entity authorized to be served for such entity or entities under the Code of Civil Procedure. The Court has considered and rejects the contentions that Reliant has somehow made a general appearance.

As it stands, and as noted above, no proof of service has been filed as to Reliant. There has been no showing of proper service of process on Reliant. Plaintiff is, of course, free to continue efforts to complete proper service on Reliant and to then file a Proof of Service of Summons as to Reliant.

Whether the omission of “, Inc.” from the Reliant’s name in the operative Complaint and Summons—“RELIANT PROPERTY MANAGEMENT” versus “Reliant Property Management, Inc.”—would render service defective in and of itself is another question which the Court need not address since there has been a failure to show proper service otherwise on Reliant. However, such a minor defect is unlikely to void otherwise proper service. See *Billings v. Edwards* (1979) 91 Cal.App.3d 826, 831 (“The complaint sometimes designates a defendant by a name *misspelled* or otherwise *erroneous* (see Pleading, § 363), and this mistake may be carried into the summons. However, if the service is otherwise properly made, and the person served is aware that he is the person named as a defendant in the erroneous manner, jurisdiction is obtained...”).

*The Court notes that Plaintiff’s Opposition was filed by Plaintiff’s attorney of record Reshma Kamath. The Court notes that the State Bar Court of California entered an Order dated October 20, 2025, enrolling Plaintiff’s attorney as an inactive attorney of the State Bar of California pending further disbarment proceedings (the “State Bar Court Order”). The Court takes judicial notice of the State Bar Court Order. The Court considers the written Opposition filed before the foregoing State Bar Court Order. However, Plaintiff’s attorney will not be permitted to appear and argue on the motion. Plaintiff is given notice that other arraignments must be made for representation or Plaintiff may appear in pro per to be heard if Plaintiff chooses to do so.

Disposition

The Court further finds and orders as follows:

1. The Motion to Quash is GRANTED IN PART and DENIED IN PART.
2. The Motion to Quash is GRANTED as to Reliant and all prior service attempts on Reliant are hereby QUASHED.
3. The Motion to Quash is DENIED as to “WILLOW GLEN APARTMENTS.”

11. 9:00 AM CASE NUMBER: L25-03003
CASE NAME: WELLS FARGO BANK, NA VS. IRANIA DELA MORA
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: WELLS FARGO BANK, NA
TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A. (“Plaintiff”) filed a Motion for Judgment on the Pleadings on September 23, 2025 (the “Motion for Judgment on the Pleadings”). The Motion for Judgment on the Pleadings was set for hearing on December 2, 2025. The motion is unopposed.

Background

The Motion for Judgment on the Pleadings is based on the contention that the operative complaint states facts sufficient to constitute a cause of action and the answer does not state facts sufficient to constitute a defense. Plaintiff contends that defendant Irania De La Mora (the “Defendant”) admits all statements in the complaint are true and that Defendant owes the alleged debt.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) (“Rutter Civ. Pro.”) § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291.

Plaintiff’s Complaint alleges causes of action for Breach of Contract based on the allegation that Defendant became indebted in the amount of \$8,083.88 on a credit card account. See Complaint filed March 24, 2025, p. 2, ¶¶ 8 an 10 and Attachments (First and Second Causes of Action), ¶¶ BC-1 through BC-4.

Defendant’s Answer was filed June 27, 2025. The Answer does not deny any of the allegations of the Complaint. See Answer filed June 27, 2025. Box 3.a. of the Answer form (general denial) is not checked. *Id.* Box 3.b. of the Answer form (admission with specific denials) is checked. *Id.* However, no exceptions are stated contending any particular allegations of the Complaint are untrue. Rather, Defendant affirmatively acknowledged liability for the debt, writing that Defendant is “seeking forgiveness from my debts...” Answer, p. 2, ¶4.

No other denials or affirmative defenses are set forth in the Answer. Box 4 regarding any affirmative defenses only addresses Defendant’s financial circumstances. Answer, p. 2, ¶4.

Even liberally construing the pleading filed by a self-represented litigant, it is evident that Defendant admits the fact of the debt and does not state any cognizable defense to the liability. While Defendant expresses a desire for the creditor to forgive the debt, that does not change the plain conclusion that the Answer does not state facts sufficient to constitute a defense to the Complaint.

The Motion for Judgment on the Pleadings was unopposed.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings:

1. Plaintiff's Complaint states facts sufficient to constitute a cause or causes of action against the Defendant and Defendant's Answer does not state facts sufficient to constitute a defense to the Complaint.
2. Defendant became indebted in the amount of \$8,083.88 on the subject credit card account (the "Debt").
3. Plaintiff is entitled to judgment as a matter of law against Defendant on the Complaint.

Costs

Plaintiff seeks an award of \$285.00 for recoverable court costs. No memorandum of costs was filed as part of the moving papers. Nor were any recoverable court costs sufficiently itemized in any supporting declaration(s). Any recoverable costs may be sought by a timely filed memorandum of costs or otherwise in accordance with applicable law. In the alternative, Plaintiff's counsel may appear to be sworn and testify as to the costs incurred.

Disposition

The Court finds and orders as follows:

1. The Motion for Judgment on the Pleadings is GRANTED.
2. A proposed form of judgment was lodged with the Court which the Court shall execute and enter.

12. 9:00 AM CASE NUMBER: L25-03679
CASE NAME: BANK OF AMERICA N.A. VS. TENISHA GARDNER
HEARING IN RE: MOTION FOR RELIEF FROM WAIVER OF OBJECTIONS & TO SERVE LATE
FILED BY: GARDNER, TENISHA M
TENTATIVE RULING:

Defendant Tenisha M Gardner ("Defendant") filed a Motion for Relief from Waiver of Objections to Interrogatories and for Leave to Serve Late Responses on October 9, 2025 (the "Motion for Relief from Waiver"). The Motion for Relief from Waiver was set for hearing on December 2, 2025.